> The governor general of India may, *in cases of emergency*, make and promulgate ordinances *for the peace and good government of British India or any part thereof*, and any ordinance so made shall, for the space of not more than six months from its promulgation, have the like *for the space of not more than six months from its promulgation*, have the like force of law as an Act passed by the Indian legislature . . . (emphases added).

The British government in London could 'disallow' an ordinance on grounds that the governor-general had exceeded his authority by passing it. It could do so in the same way that it could disallow a statute passed by the Indian legislature and assented to by the governor-general.[1] The governor-general had to give reasons for issuing his ordinance. So in the Preamble, Governor-General Irwin declared, '. . . an emergency has arisen which makes it necessary to provide specially for the trial of the accused in the cases known as the Lahore Conspiracy case.' But he did not say that this was in the interests of maintaining 'peace and good government' in India. So the reasons were not good.[2] It was not enough for Irwin to claim that the offences were of an 'unusually serious character' because they arose from 'revolutionary activities'. Nor was it enough to say that 'it would be necessary to produce about 600 witnesses'. Nor that there has been an earlier 'hunger strike before the commencement of the enquiry', which had caused the magistrate Rai Sahib Pandit Sri Kishen to adjourn proceedings for two months from 26 July to 24 September 1930. None of these are reasons which have anything to do with 'peace and good government' in India, nor do they amount to an emergency.

In fact, some of the 'reasons' he gave were positively bad reasons which could not stand up in court if challenged. To say of the magistrate's trial that 'it was then resumed, but there were numerous interruptions owing to defiant and disorderly conduct by some of the accused or demonstrations by members of the public' does not justify a trial by ordinance. The maintenance of order and courtroom decorum is the task of every judge in a criminal trial. In fact, the accused were not 'disorderly', there were no demonstrations by members of the public before judge Rai Sahib Pandit Sri Kishen, and some 230 witnesses had already been called. So, the suggestion